

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 16, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINES 3-5	24CV444939	Timed Out, LLC vs Liquid Restaurant and Lounge LLC	Motion to Compel Further Responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One; and Sanctions. Parties to appear. Before the court is Plaintiff Timed Out, LLC's ("Timed Out") motion to compel responses to the following discovery: further responses to Form Interrogatories ("FROG"); further responses to Special Interrogatories ("SPROG"); further responses to Request for Production of Documents ("RFPD"), Set One; and Motion for Sanctions against Defendant Liquid Restaurant and Lounge LLC's ("Liquid Restaurant"). On December 22, 2025, Plaintiff Timed Out filed this motion to compel further responses to <u>216 total discovery responses</u> as follows: 13 FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); 134 SPROGs (Nos. 1-134); and 69 RFPDs (Nos. 1-69). Plaintiff Timed Out also filed a motion to compel further responses to Request for Admissions ("RFA"), Nos. 1-83 that is set for hearing on August 13, 2026. In total, Plaintiff seeks to compel <u>299 further discovery responses</u> for FROGs (Nos. 1.1, 3.1-3.7, 4.1, 4.2, 15.1, 16.1, and 17.1); SPROG (Nos. 1-134); RFPD (Nos. 1-69), and RFA (Nos. 1-83), Set One. The Court has reviewed the plaintiff's moving papers filed on December 22, 2025; defendant Liquid Restaurant's Oppositions filed on July 2, 2026; and the plaintiff's Reply to defenses' opposition filed on July 9, 2026; as well as the pleadings. <u>Given the total number—299—of discovery at issue</u>, the Court orders the parties to meet-and-confer and submit a joint statement setting forth discovery that has been resolved and remain at issue. The Court will also discuss having this matter assigned to a discovery referee under Code of Civil Procedure section 639 and 645.1
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LAW AND MOTION TENTATIVE RULINGS

			The court orders that all three discovery motions on calendar today and the motion to compel further responses to RFA set for August 13, 2026 are CONTINUED to September 22, 2026 at 9:00 a.m. in Department 1. The parties are ordered to conduct good faith, reasonable and meaningful conferences, and meet-and-confer in person, by audio telephone, or video conference, to narrow the many issues in these motions. If any issues remain after the meet and confer efforts, which may span several sessions, the parties shall file an updated <i>joint</i> statement no later than September 14, 2026, which shall identify the remaining items in dispute and the reasons why further responses should/should not be compelled. Additionally, parties are to discuss the retaining a private discovery referee or discovery facilitator offered by the Court [https://santaclara.courts.ca.gov/divisions/civil-division/civil-adr-providers/discovery-facilitator-program]. Failure to comply with this order will result in consideration of sanctions. The Court will prepare the Order.
LINES 6-7	25CV471084	Maria Ruiz vs Toyota Motor Sales, U.S.A., Inc. et al.	Motion to Strike (Line # 7) and Demurrer (Line # 8) Scroll down to Lines 7 - 8 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
LINE 1	26CV49241 6	3901 North First, LLC c/o Prospecthill Group vs Continental Automotive Systems, Inc.	Application for <i>Pro Hac Vice</i> Counsel <u>I. BACKGROUND</u> On June 17, 2026, Defendant Continental Automotive Systems, Inc. (“Continental”) filed this unopposed application for Isaiah A. Fishman to be admitted as <i>pro hac vice</i> counsel. Defendant Continental filed a proof of service indicating electronic service on that same day. No opposition papers were filed by the plaintiff. Per Code of Civil Procedure section 1005(b), opposition papers were due on July 2, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>II. LEGAL STANDARD</u> Pursuant to California Rule of Court, rule 9.40(a), for an out-of-state lawyer, not admitted to practice in California may apply for <i>pro hac vice</i> admission. The application must include the following: (1) the applicant must be admitted to practice before a U.S. court, or the highest court of any state or territory; (2) he or she must not be a California resident, nor regularly engaged in practice or other business here; and (3) a member of the California Bar must be associated as attorney of record in the case. A verified application must be filed stating (1) the applicant's residence and office addresses; (2) the court or courts in which he or she is admitted to practice and the dates of admission; (3) that he or she is currently in good standing in such courts; (4) that he or she has not been suspended or disbarred in any court; (5) the title and case number of any California action in which he or she has applied to appear <i>pro hac vice</i> during the preceding